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Governor signs bill to strengthen domestic violence restraining orders

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Last week, Governor Gavin Newsom signed into law Assembly Bill 467, a bipartisan measure authored by Assemblymember Jesse Gabriel that will strengthen the ability of judges to grant and modify domestic violence protective orders.

"At a time in which violence against women and domestic abuse have increased to record levels around the world, it is crucial that we ensure domestic violence restraining orders are offering the fullest possible protection," said Assemblymember Gabriel. "This legislation will clarify a judge's authority over these orders and extend the amount of time a court can modify the orders to ensure that we are providing ample protection to victims of domestic abuse."

Santa Clara County District Attorney Jeff Rosen, sponsor of the bill, hailed the new law as crucial to make sure that victims of crime can petition the court to change the terms of restraining orders during the 10-year lifetime of those orders. In some instances, victims will need more protections from the court, and in others fewer.

Rosen said, "Giving judges the ability to modify their own court orders will help victims of domestic violence manage the protections to keep them safe. We are so grateful to Assemblymember Jesse Gabriel for championing this important new law."

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Ambiguity in current law has left some courts confused as to when and for how long they have authority over domestic violence restraining orders and when they can modify provisions related to contact between the restrained person and the protected person, which can either be a "peaceful contact order" or a no contact order. Victims often seek to modify the order from PCO to NCO or vice versa.

Some courts have determined that if the defendant is no longer serving a sentence and is not on probation, they do not have the jurisdiction to modify the order, even if both the victim and defendant request it. This confusion in current law is detrimental to both victims and defendants. AB 467 gives sentencing courts the authority to modify the terms of a peaceful contact order or no contact order and make modifications to the order throughout the duration of the domestic violence protective order.

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